

		and the court rejects it. As stated above, the XC alleges that, beginning around 09-02-2025, plaintiffs stated “(1) there was mold at Cross-Complainant, Christ Church by the Sea Children’s Center, and (2) that the Pastor at Cross-Complainant, Christ Church by the Sea, had engaged in sexual misconduct.” ROA 23 ¶ 14. The allegations further state that “the conduct of Cross-Defendants, Hillary Jade Cortese and Hillary Pedersen, described herein above, was intended by those Cross-Defendants to cause injury to Cross-Complainants and was despicable conduct carried out by said Cross-Defendants with a willful and conscious disregard of the rights of Cross-Complainants, subjecting Cross-Complainants to cruel and unjust hardship in conscious disregard of Cross-Complainants’ rights such as to constitute malice, oppression or fraud...” Id. ¶ 19. At the pleading stage, the complaint may rely on, as here, ultimate facts of oppression or malice. See Spinks v. Equity Residential Briarwood Apartments (2009) 171 Cal.App.4th 1004, 1055. The court finds the allegations sufficient to survive the motion to strike and on that basis, it is DENIED.
102	Guenther vs. Qazi Cosmetic Clinic 2025-01502198	1. Motion to Compel Arbitration 2. Case Management Conference Defendant Qazi Cosmetic Clinic’s unopposed Motion to Compel Arbitration is GRANTED. In fact, the parties recently submitted a stipulation and proposed order to that effect. The Court has signed the order. The parties left open the question of whether a stay of the representative PAGA claims was appropriate, pending arbitration of Plaintiff’s individual claims. The Court concludes a stay is appropriate. Accordingly, plaintiff is ordered to arbitrate her individual claims against defendant, including her individual PAGA claim. Plaintiff’s representative PAGA claim is stayed, along with the remainder of the action, pending the outcome of the arbitration. See 9 U.S.C. § 3; Cal. Civ. Proc. Code § 1281.4; Viking River Cruises, Inc. v. Moriana (2022) 142 S. Ct. 1906, 1919; Adolph v. Uber Technologies, Inc. (2023) 14 Cal. 5th 1104, 1125. An ADR Review hearing is scheduled for August 19, 2027, at 9:30AM in Department CX102. The parties are ordered to file a joint status conference report at least 10 court days prior to the hearing. Defendant to give notice.

103	Kristoffer Ryan Winters, Trustee of The Kristoffer Ryan Winters Living Trust Dated August 4, 2015 vs. Emmes 2026-01548348	Motion to Compel Arbitration Defendants Beacon Pointe Advisors, LLC, Beacon Pointe Advisors Holdings, LLC, and David Emmes’ alternative Motion to Stay Action is GRANTED; the Motion to Compel Arbitration is DENIED AS MOOT. Defendants may file a motion to compel arbitration after the stay is lifted. “It is black letter law that, when a Federal action has been filed covering the same subject matter as is involved in a California action, the California court has the discretion but not the obligation to stay the state court action.” <i>Caiafa Prof. Law Corp. v. State Farm Fire & Cas. Co.</i> (1993) 15 Cal.App.4th 800, 804; accord <i>Thomson v. Continental Ins. Co.</i> (1967) 66 Cal.2d 738, 746 (“Granting a stay in a case where the issues in two actions are substantially identical ... is a matter addressed to the sound discretion of the trial court.”). ““In exercising its discretion the court should consider the importance of discouraging multiple litigation designed solely to harass an adverse party, and of avoiding unseemly conflicts with the courts of other jurisdictions. It should also consider whether the rights of the parties can best be determined by the court of the other jurisdiction because of the nature of the subject matter, the availability of witnesses, or the stage to which the proceedings in the other court have already advanced.’ [Citation.] The California Supreme Court also has isolated another critical factor favoring a stay of the state court action in favor of the Federal action, a factor which happens to be present in this case—the Federal action is pending in California not some other state.” <i>Caiafa</i>, 15 Cal.App.4th at 804. Courts may also consider judicial economy and efficiency. See, e.g., <i>Schneider v. Vennard</i> (1986) 183 Cal.App.3d 1340, 1348 (to the extent possible, it is preferable to resolve a dispute through a pre-existing action rather than proceeding simultaneously.) Here, the court finds a discretionary stay is warranted. First, this action and the “Federal Action,” i.e., <i>Winters v. Lugano Diamonds & Jewelry, Inc., et al.</i> (C.D. Cal.) No. 8:25-cv-01202-DOC-DFM, involve the same subject matter and the same underlying facts. While plaintiff argues “this case is the only one based on the sale of securities,” the court finds this a distinction without a difference as the Federal Action, as here, is chiefly concerned with Mr. Ferder’s and Lugano Diamonds’ liability for the alleged underlying wrongful acts. Indeed, as plaintiff has alleged, the “securities” at issue are the same “fractionalized interests in diamond jewelry investments,” that are the subject of the related cases. ROA 2 ¶ 62. In other words, the core evidence in this and the Federal Action are coextensive. Plaintiff’s argument also fails to account for the recent SEC action, which directly involves Ferder’s and/or Lugano Diamonds’ sale of securities. <i>Securities and Exchange Commission v. Ferder, et al.</i> (C.D. Cal.) No. 8:26-cv-02492. A stay is appropriate where there is a strong probability that issues necessary to a determination of the action would be concluded, in whole or in part, in the other proceeding. <i>Federal Ins. Co. v. Superior Court</i> (1998)
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